



Rule 2.86—Form 1: Application to Expunge Court Record under Iowa Code section 901C.2

If you do not understand how to use this form, or if you are unsure whether you should use this form, talk to an attorney.

In the Iowa District Court for Johnson **County**
County where you are filing this Application

State of Iowa or _____

vs.

Alexandra Catherine Montgomery-Example
Defendant

Case no. EXAMPLE-BOUNDARY-900002

**Application to Expunge Court Record
under Iowa Code section 901C.2**

If you need assistance to participate in court due to a disability, call the disability coordinator (information at www.iowacourts.gov/for-the-public/ada). Persons who are hearing or speech impaired may call Relay Iowa TTY (1-800-735-2942). **Disability coordinators cannot provide legal advice.**

Defendant respectfully applies to the court for an order expunging the court records in this case pursuant to Iowa Code section 901C.2. In support of this application, Defendant acknowledges that the following statements are true and correct to the best of Defendant's knowledge:

Read, complete, and check each item if you agree.

1. ☐ This criminal case contains one or more criminal charges for which:

Check one

- A. ☐ An acquittal was entered for all criminal charges.
B. ☐ All criminal charges have been dismissed.

2. ☒ All court costs, fees, and any other financial obligations ordered by the court or assessed by the clerk of district court in relation to the charges in this case have been satisfied in full.

3. ☒ Since the entry of the judgment of acquittal or the order dismissing the case:

Check one

- A. ☒ More than 180 days have passed.
B. ☐ The court should waive the 180-day requirement because:

☐ *Check this box if you have attached a sheet with additional information.*

4. ☒ This case was not dismissed due to Defendant being found not guilty by reason of insanity.
5. ☒ Defendant was not found incompetent to stand trial in this case.

Continue to next page



Read Before Signing

Please check each statement below after you have read it.

- ☒ **I understand** that I must provide a copy of this application to the county attorney.
- ☒ **I understand** that the records in a criminal case expunged under this section are confidential and exempt from public access under Iowa Code section 22.7, but the clerk of district court may make the records available upon request and without court order to Defendant or to an agency or person granted access to the deferred judgment docket under Iowa Code section 907.4(2).
- ☒ **I understand** that Iowa Code section 901C.2 does not apply to dismissals related to a deferred judgment under section 907.9.
- ☒ **I understand** that Iowa Code section 901C.2 applies only to public offenses, as defined under section 692.1.

Signature

Check one

- A. ☐ Defendant is self-represented.

If you check A, you must fill in the following information:

I, Alexandra Catherine Montgomery-Example, have read this Application, and I certify

Print your full name: first, middle, last

under penalty of perjury and pursuant to the laws of the State of Iowa that the information I have provided in this Application is true and correct.

_____, 20____
Month Day Year *Self-represented defendant's signature**

9999 Example Heritage Boulevard, Apartment 1234

Mailing address

University Heights, IA 52246-1234
City State ZIP code

(319) 555-0199 alexandra.montgomery.example@example.org
Phone number Email address

**This form may be signed either by using a digitized signature, see instructions at <https://www.iowacourts.gov/for-the-public/court-forms/>, or by printing and hand-signing.*

Continue to next page



- B. ☐ Defendant's attorney is filing this Application on behalf of Defendant after discussing the contents of this Application with Defendant.

If you check B, you must fill in the following information:

_____, 20____
Month Day Year Attorney's signature

Name of law firm, if applicable

Mailing address

_____, _____
City State ZIP code

(_____) _____
Phone number

Email address

Additional email address, if applicable

Certification of Service by Mailing or Delivery

If you cannot find your case on the Iowa Judicial Branch eFile System, proceed with filing your application in paper at the county clerk of court office. You must fill out the below and mail or hand deliver a copy of this application to the county attorney of the county in which you are filing this application.

I, _____, certify that on _____, 20____,
Print your full name: first, middle, last Month Day Year

I mailed or gave a copy of this Application to the county attorney at this address:

Name of person to whom I delivered or mailed it

_____, _____, _____
Mailing address City State ZIP code

Iowa nonconviction expungement: next steps

Alexandra Catherine Montgomery-Example | Johnson County | EXAMPLE-BOUNDARY-900002

1. What is in this packet

The first three pages are the official August 2024 Rule 2.86 Form 1. Page 3 includes the paper-service certification. No separate service form, proposed order, notarization, DCI request, criminal-history result or billing form is part of this court application.

You did not request a good-cause waiver. No waiver statement has been inserted.

These instructions are not filed with the court. Separate them from the application and any selected good-cause attachment. Fixture names, case numbers and personal facts are invented examples, not real court records. DO NOT FILE THESE EXAMPLES.

2. Check the exact case and timing

Use the existing Johnson County case, EXAMPLE-BOUNDARY-900002, not a new case in the county where you live. Use one application per separately numbered case. Confirm the original caption, name and case number.

Your supplied disposition date is 2026-03-10; the assessment date is 2026-09-07 (181 days later). The statute requires a minimum of 180 days from entry of acquittal or the dismissal order, not sentence completion. Recheck timing when you file.

Item 3.A is marked because your supplied dates exceed 180 days. That is not a court eligibility decision.

This route requires all charges in this case to have been dismissed or acquitted. It is not a deferred-judgment, partial-disposition, insanity-acquittal, incompetency or felony-conviction expungement application. Nonconviction relief is not limited to misdemeanor charges. It concerns district-court public-offense records, not an appellate record except an appeal of a simple misdemeanor to district court.

3. Finish the blanks and sign

You must personally finish item 1 and its A/B election. Your supplied outcome is all charges acquitted. Verify the entire case, check item 1, then check B for all dismissed or A for all acquitted. Do not check both.

Review every checked statement and acknowledgment for accuracy. If anything is untrue or uncertain, stop and correct it. For self-representation, check election A on page 2, enter the actual signing date, and sign under penalty of perjury. A printed name is not a signature. The attorney election and all of block B remain blank. Follow the court instructions for a permitted digitized signature or print and sign; no notarization is required.

Known contact facts are already entered. Check them and correct changes before filing.

4. File and serve the county attorney

You selected eFile. Register or sign in to the Iowa Judicial Branch eFile System, locate this existing Johnson County case, and submit the signed application with any required attachment. Verify acceptance and electronic service on the county attorney. Keep the filing and service notices; an upload alone is not proof of either.

Do not complete the embedded paper-service certification merely because this PDF contains it. If electronic service does not reach the county attorney, resolve service with the clerk or legal help rather than claiming successful service.

For paper service, enter the actual mailing/delivery month, day and two-digit year on page 3 only after sending or delivering the copy. The service date is deliberately blank. Follow the clerk instructions for submitting the completed certification. The county attorney generally has 20 days after service to respond, unless the court orders otherwise (Rule 2.83(1)). A hearing may be set; do not assume silence is an order.

Iowa nonconviction expungement: next steps

Alexandra Catherine Montgomery-Example | Johnson County | EXAMPLE-BOUNDARY-900002

5. Costs, decision and self-help stopping point

University of Iowa Student Legal Services states there is no fee to file this expungement request. Verify any case-specific amount with the clerk. This packet includes no application-fee payment selection or generic fee-waiver form. Copies, postage or other services can cost money.

Original case debt is different from an application fee: all financial obligations in this case must be paid. Obtain the case balance from the clerk before filing. Separate civil room-and-board charges under section 356.7 are not included in this case-debt requirement. You obtain and keep supporting records; this draft does not authenticate them or condition generation on uploading them.

Stop self-help and seek an attorney or legal aid if the county attorney opposes, a hearing becomes contested, only some charges qualify, the case is a deferred judgment, you rely on identity theft or mistaken identity for a waiver, debt is disputed, immigration consequences are involved, or you seek an appellate-record remedy. Do not miss a hearing or court deadline while seeking help.

An order makes the court record confidential and removes public access; it does not destroy the record. The defendant and persons or agencies authorized under section 907.4(2) can still obtain access as provided by law. This packet does not promise removal from DCI, police, private background reports or every database. Keep the order and confirm the public court record has been updated.

Sources and help

Iowa Code 901C.2 (2026); Iowa Rules of Criminal Procedure 2.80, 2.83 and 2.84; Rule 2.86 Form 1 (August 2024). Read the official source and your court notices; these instructions do not replace legal advice.

<https://www.legis.iowa.gov/docs/code/2026/901C.2.pdf>

<https://www.iowacourts.gov/collections/867/files/1962/embedDocument/>

<https://www.iowacourts.gov/efile>

<https://studentlegal.uiowa.edu/know-the-law/criminal-law/expungement>